

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

January 13, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Absent: Mr. Allen. Also present: Carol Intlekofer, City Clerk, and Dan White, City Attorney. The pledge of allegiance was recited.

Recognition was made and congratulations extended to Michael Martinez-Montano, Cassidy Weber, Elissa Pino and Kiahna Pisano for being selected as the Cheyenne Boys and Girls Club Youth of the Year. It was noted that Ms. Pisano will be Wyoming's representative at the national level.

ELECTION OF CITY COUNCIL PRESIDENT FOR 2014. Mayor Kaysen noted for the record that, pursuant to City Code, he would be conducting the election for the office of City Council President but would not be voting, and advised nominations were in order. Mr. Shanor moved to nominate and elect Dr. Rinne as City Council President for 2014, seconded by Mr. Valdez. There being no further nominations, Mr. Shanor moved that nominations cease, seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote. Comment followed in support of the nominee. Motion to nominate and elect Dr. Rinne carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote.

ELECTION OF CITY COUNCIL VICE-PRESIDENT FOR 2014. Mayor Kaysen noted for the record that, pursuant to City Code, he would be conducting the election for the office of City Council Vice-President but would not be voting, and advised nominations were in order. Ms. Broyles moved to nominate and elect Mr. Allen as City Council Vice-President for 2014, seconded by Dr. Rinne. There being no further nominations, Mr. Shanor moved that nominations cease, seconded by Ms. Broyles. Motion carried. Voting "yes"-- all members of the governing body present with the exception of Mayor Kaysen who did not vote. Motion to nominate and elect Mr. Allen carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Ms. Broyles and Dr. Rinne, Agenda Item #15 was removed from the Consent Agenda. Mr. Shanor moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on December 23, 2013. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and Radio Station KYOY-FM respectively) and vacated Council Chambers. Mr. Shanor moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from NB Neighborhood Business to NR-2 Neighborhood Residential – Medium Density for Lots 15 and 16, Block 17, Crest Ridge, 4th Filing, Cheyenne, Wyoming (located south of and adjacent to Storey Boulevard, between Canyon and Ridge Roads). Roger Alexander, adjacent property owner, spoke in agreement with the proposed zoning classification but expressed concerns with proposed development plans for the property relative to such topics as buffering, screening and lighting, and the development being inconsistent and incompatible with the existing neighborhood. Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Discussion followed on zoning criteria being met by the developer, and the possibility to address additional development plan concerns, which would include the opportunity for public input, as the project proceeds. Upon inquiry, Brandon Cammarata, Planning and Development Director, advised that options available that have been discussed may involve either a conditional use approval or plat approval process. Upon further inquiry, Mayor Kaysen confirmed if a plat came before the governing body the process would provide for public input. Motion carried. Voting “yes” -- all members of the governing body present. (#4014)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential – Established and MUR Mixed Use Residential Emphasis to MUR Mixed Use Residential Emphasis for the N1/2 of Lot 2, and all of Lots 3 & 4, Block 236, Original City (to be known as Keefe Cottages Subdivision), Cheyenne, Wyoming (located at the southeast corner of the intersection of Evans Avenue and E. 22nd Street). Mr. Shanor moved to approve on third and final reading, seconded by Mr. Cook. Upon inquiry, Brandon Cammarata, Planning and Development Director, stated it was his understanding the applicant is seeking the zone change as a housekeeping effort since most of the property is already zoned MUR, and the change will provide for continuation of existing uses (detached garages) and that he was not aware of any properties within the block being used for a commercial purpose. Motion carried. Voting “yes” -- all members of the governing body present. (#4015)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential-Established to MUB Mixed-Use Business Emphasis for Lot 1, and the East 34-feet of Lot 2, Block 382, Original City, Cheyenne, Wyoming (located at the southwest corner of the intersection of Pebrican Avenue and E. 17th Street). Jan Nelson-Schroll expressed concerns with the MUB zone classification relative

to allowing more business activities within the residential neighborhood. She suggested a policy be put into place whereby a house, or the property site, could be easily transitioned back into a residentially zoned use. She commented in support of preservation efforts concerning proposed renovation of the house located upon the property. Mr. Shanor moved to approve on third and final reading, seconded by Mr. Luna. Discussion followed on concerns with commercial developments and ventures encroaching into residential areas, and whether there would be any problem procedurally if, in the future, use of the property were to return to residential use. Jonathan Woodward, Development Office, advised that a residential use is permitted within a MUB zone so a zone change action would not be required if a property owner wanted to change the business use back to residential use. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne and Ms. Williams voting "no". (#4016)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code changing the zoning classification from LI Light Industrial to MUR Mixed-Use Residential Emphasis for Lot 8, Block 223, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of Dillon Avenue and W. 21st Street) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Vacating a portion of 16 foot alley in Block 353, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. 18th Street and Thomes Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Designating local banks as depositories for municipal funds. Motion (per Consent Agenda) carried. (#5557)

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Keefe Cottages Subdivision, a replat of the North ½ of Lot 2, and all of Lots 3 and 4, Block 236, Original City, Cheyenne, Wyoming (located at the southeast corner of the intersection of Evans Avenue and E. 22nd Street). Casey Palma, Steil Surveying Services, agent for the applicants, provided information regarding the affiliated zone change acted upon earlier in the meeting, noting the re-zoning of the property provides for retaining existing uses of the property, and advised the plat includes designation of separate lots for areas currently having garage structures and provides for an access easement to a shared alley. During discussion and upon inquiry, Mr. Palma stated the lots are small in size and any parking area for items such as boats and recreational vehicles would be no different than other properties; that no additional traffic volume due to the platting action was foreseen, and that currently there are no construction plans involving the property. Mr. Shanor moved to adopt, seconded by Mr. Cook. Following brief discussion, motion carried. Voting "yes" -- all members of the governing body present. (#5558)

[CA] RESOLUTION - Approving the five year Transit Development Plan for the Cheyenne Transit Program as a flexible planning tool for future improvements to the Cheyenne area transit program. Motion (per Consent Agenda) carried. (#5559)

[CA] RESOLUTION - Authorizing the City of Cheyenne to grant an easement to the United States

of America, Department of Energy, Western Area Power Administration, for the installation of buried fiber optic and other communications cables within Western Area Power Administration's existing electric transmission line easement over a parcel of land owned by the City of Cheyenne, Wyoming. Motion (per Consent Agenda) carried. (#5560)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for attendance at the 2014 Saving Places Conference -- referred to Finance Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Designating the Sundays during 2014 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 A.M. the following day -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for use of a 2006 Chevrolet El Dorado bus for services for Stride clients. Motion (per Consent Agenda) carried. (#6118)

[CA] Agreement between the City of Cheyenne and Frontier Refining, LLC, designating Holly Frontier Refining Corporation as the title sponsor of the annual Superday event for 2014, 2015 and 2016. Motion (per Consent Agenda) carried (revenue to the City in the amount of \$25,000.00 annually). (#6119)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and Laramie County Sheriff's Department for Explosive Ordnance and Disposal (EOD), Special Weapons and Tactics (SWAT) and Crisis Negotiation Unit (CNU) operations and law enforcement extraterritorial assistance and activities -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5965 between the City of Cheyenne, Parks and Recreation Department, and DHM Design Corporation for additional design services for the Converse Softball Complex Renovation project (Menard property sale proceeds). Motion (per Consent Agenda) carried (amount not to exceed \$7,400.00). (#5965)

[CA] Authorization to purchase traffic striping paint and beads under Wyoming Department of Transportation Bid #14-002TZ and #14-003TZ (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried.

[CA] Consideration of Bid #R-8-14 for furnishing two new 2014-2015 trucks for the City of Cheyenne, Public Works Department (2011 - 2014 1% Sales Tax & General Small Equipment fund) -- referred to Finance Committee.

Announcement was made of the Re-Appointments of Ann Picot and Daryl Hensel to the Mayor's Council for People with Disabilities, to be confirmed January 27, 2014.

Announcement was made that due to the Martin Luther King, Jr. Holiday on Monday, January 20, 2014, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 21, 2014 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 22, 2014 at Noon.

Under other business:

Ms. Broyles stated that at the December 23, 2013 City Council meeting, the motion to approve on 3rd and final reading the ordinance involving sign amendments to the Unified Development Code failed; that she had voted on the prevailing side and, pursuant to Chapter 2.04 of City Code, moved to reconsider the vote taken on the ordinance on 3rd and final reading, seconded by Mr. Cook. Upon request by Mayor Kaysen, Carol Intlekofer, City Clerk, read the entitlement of the ordinance proposed for reconsideration into the record as follows: An Ordinance amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to address issues raised regarding City sign regulations. Ms. Broyles commented on the purpose of her motion to reconsider the ordinance. Motion to reconsider carried. Voting “yes” – all members of the governing body present. Ms. Broyles moved to amend by substitute ordinance, seconded by Mr. Cook. Comments followed on the proposed substitute addressing election/political signs as a separate issue at this time, and concern that the proposed substitute does not adequately address constitutional issues present in the current ordinance. Motion to amend carried. Voting “yes” – Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne and Mayor Kaysen. Voting “no” – Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Ms. Broyles moved to postpone the item to January 27, 2014, seconded by Mr. Brown. It was noted postponement will provide the opportunity for the public to be aware of the reconsideration action and provide input on the substitute ordinance being proposed. Motion to postpone carried. Voting “yes” – all members of the governing body present. Mayor Kaysen advised the item will be reviewed for recommendation at the next Public Services Committee meeting, which will be held Wednesday, January 22, 2014 at Noon in Room 122, Municipal Building, due to the Martin Luther King, Jr. Holiday that week.

Upon inquiry, Rick Parish, Parks and Recreation Director, advised staff is looking at options with regard to swimming facilities that may be available to the public during the closure of the Municipal Pool in Lions Park due to construction beginning this spring.

It was noted the annual Martin Luther King, Jr. dinner banquet will be held at the Holiday Inn on January 19, 2014 beginning at 6:00 p.m., and the annual public march (from the Depot to Capitol Building) will be held on January 20, 2014 in observance of the holiday.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:49 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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